

Amendment No. 1 to SB1228

Briggs
Signature of Sponsor

AMEND Senate Bill No. 1228

House Bill No. 1110*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 2, Chapter 3, Part 1, is amended by adding the following as a new section:

(a) Each county election commission shall collaborate with the sheriff of the county to establish one (1) or more satellite voting locations in the jail and detention facilities within the county where eligible voters are confined or detained.

(b) The county election commission shall conduct voting at a satellite voting location pursuant to subsection (a) on one (1) or more days, for an amount of time to be determined by the sheriff's office and the county election commission, within the period for early voting or on election day as determined by the sheriff's office and county election commission.

(c) The schedules for conducting voting do not need to be uniform among the satellite voting locations.

(d) If access to the county jail or detention facility is unavailable due to a lockdown or other exigent circumstances on the date for which in-person voting for eligible incarcerated or confined individuals is scheduled, then the sheriff's office shall work with the county election commission to schedule a different date for in-person voting to be held in accordance with this section.

(e) Only those individuals who are residents of and registered in the county of their confinement or detention are eligible to vote in-person at the county jail or detention facility. A satellite voting location established under this section must allow a voter to

vote in the same elections that the voter would otherwise be entitled to vote but for the voter's detention.

(f) To the maximum extent feasible, voting booths and screens must be provided to ensure the voter's right to a private ballot.

(g) All provisions of this title applicable to poll watchers apply to a satellite voting location under this section, subject to approval by the county election commission.

(h) If feasible and if in the jail's or detention facility's possession, the jail or detention facility shall provide the incarcerated voter with access to the voter's identification sufficient under § 2-7-112 to vote at the jail satellite voting location. If it is not feasible for the jail or detention facility to provide the identification, or if it is not in the jail's or detention facility's possession, the jail or detention facility shall make available jail records containing the voter's name and photograph to serve as evidence of identification, as provided in § 2-7-112(c)(8).

(i) This section does not prohibit an individual from voting during the early voting period at another location established for early voting, voting in person on election day at their designated precinct, or voting absentee by mail, unless the person has voted in jail or a detention facility pursuant to this section.

(j) The county election commission shall collaborate with the sheriff to facilitate voter registration for eligible voters detained at the jail or detention facility. The jail or detention facility shall provide a voter registration application to a person in custody at the jail or detention facility who requests an application.

(k) Each jail and detention facility in the county shall make available printed current resource materials, maintained by the county election commission and the secretary of state, containing detailed information regarding the voting rights of a person with a criminal conviction and the process for restoring one's right to vote if it has been lost due to a criminal conviction.

SECTION 2. Tennessee Code Annotated, Section 2-7-112(c), is amended by adding the following as a new subdivision:

(8) A jail roster or other record maintained by a jail or detention facility; provided, that such identification contains the name and photograph of the voter.

SECTION 3. Tennessee Code Annotated, Section 2-7-112(g), is amended by deleting the subsection and substituting:

(g) Except as provided for under subdivision (c)(8), an identification card issued by a county or municipality or entity thereof, including a public library, containing a photograph is not evidence of identification for purposes of verifying the person's identification on the application for ballot.

SECTION 4. This act takes effect January 1, 2026, the public welfare requiring it.